LEGAL NOTICE • MARKETPLACE ROLES & LIABILITY LIMITS

XAVORIAN DISCLAIMER

Last Updated: October 2026 | Effective Date: August 2026 | Jurisdiction: Federal Republic of Nigeria

IMPORTANT NOTICE ON MARKETPLACE ROLES & LIABILITY

Xavorian is a technology marketplace platform, not a landlord, real estate broker, bank, insurer, or escrow agent. We build multi-layer identity, document, and bank-name verification tools to help filter out bad actors before listings go live.

Because we provide screening technology rather than owning or selling the properties ourselves, each user remains responsible for conducting their own independent physical due diligence and lands registry searches.

Subject to the Terms of Service and Nigerian law, Xavorian is not liable for losses caused solely by the independent fraud, forgery, or criminal conduct of users or third parties that are not attributable to Xavorian's own fault. Nothing in this Disclaimer limits liability that cannot lawfully be excluded.

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1. GENERAL DISCLAIMER

Xavorian ("Platform," "we," "us," "our," or "Company") provides a technology-enabled real estate marketplace platform that facilitates connections between property buyers, sellers, and agents. This Disclaimer outlines the limitations of liability, disclaimers of warranties, and important legal information regarding your use of our Platform and services.

Xavorian is not itself a real estate broker, agent, or financial institution. We do not buy, sell, or hold property on our own behalf. We do not provide real estate advice, financial advice, legal advice, or tax advice. Our role is limited to providing the technology platform and infrastructure that enables real estate transactions.

This Disclaimer is read together with the Terms of Service. If they conflict, the Terms of Service prevail.

2. LIMITATION OF LIABILITY

2.1 Disclaimer of Warranties

Subject to applicable Nigerian law, Xavorian provides its Platform and Services on an "as is" and "as available" basis. Except as expressly stated in the Terms of Service or required by law, Xavorian gives no warranties.

2.2 Limitation of Damages

To the maximum extent permitted by Nigerian law, Xavorian is not liable for indirect or consequential loss, including lost profits, lost revenue, or lost data, where such loss is legally excludable.

Xavorian's total liability to a user is capped as set out in Section 12.2 of the Terms of Service: the greater of 70% of the fees the user paid Xavorian in the previous six months, or ₦50,000. This applies only where the law allows, and it does not limit liability for fraud or any liability that cannot lawfully be excluded.

3. NO REAL ESTATE ADVICE

Xavorian does not provide real estate advice, investment advice, or guidance on property valuation. We strongly recommend that you:

- Consult licensed real estate agents in your jurisdiction
- Hire professional property inspectors to evaluate physical condition
- Conduct independent market research and property valuation
- Consult real estate attorneys regarding legal matters
- Verify all information through government records and official sources

4. NO FINANCIAL OR INVESTMENT ADVICE

Xavorian does not provide financial advice, investment advice, tax advice, or loan advice. Prices, mortgage calculations, rental yield estimates, and other financial information provided on our Platform are estimates only and should not be relied upon for financial decision-making.

5. NO LEGAL ADVICE

Nothing on Xavorian constitutes legal advice. Real estate transactions involve complex legal issues that vary by jurisdiction. Before entering into any property transaction, you must consult with a qualified attorney licensed in your jurisdiction.

6. PROPERTY LISTINGS DISCLAIMER

6.1 Accuracy of Listings

Xavorian uses AI-assisted verification, but except as expressly stated in the Terms of Service, we cannot guarantee the accuracy, completeness, or authenticity of property listings. Sellers are responsible for the accuracy of information they provide. We do not independently verify:

- Property ownership
- Physical property conditions
- Property boundaries or survey accuracy
- Title clarity or liens
- Zoning compliance
- Building code compliance
- Environmental conditions
- Price accuracy

6.2 Verification Limitations

Our AI verification system analyses documents for authenticity and fraud indicators, but automated systems are not infallible. Even if documents receive “verified” status, this does not guarantee absolute authenticity or legal validity.

6.3 Sellers’ Responsibility

Sellers are solely responsible for the accuracy, legality, and authenticity of listings and documents they provide. Xavorian does not endorse, recommend, or vouch for any sellers or properties.

7. COMMUNICATION AND CHAT DISCLAIMER

7.1 Automated Monitoring

Our automated systems may monitor in-platform communications to detect fraud, scams, and violations, as explained in our Privacy Policy. Monitoring is not comprehensive and may not detect all problematic communications.

7.2 Fraud Prevention Red Flags

Be vigilant of these warning signs, and report suspected fraud to our support team immediately:

- Requests for payment outside the Platform
- Pressure to move quickly
- Offers that seem too good to be true
- Requests for personal financial details
- Inconsistencies in information
- Requests to wire money or use untraceable payment methods
- Unknown sellers with no verification badges
- Refusal to use secure payment services

8. PAYMENT DISCLAIMER

8.1 Payment Process via Paystack

All payment transactions connected with the Platform are routed through Paystack (a Central Bank of Nigeria licensed payment solution service provider) directly to verified bank accounts. Xavorian is a neutral technology platform, not a bank, payment service provider, escrow agent, or financial institution. Xavorian does not hold, pool, or take custody of User funds.

8.2 No Guarantee of Transaction Completion

Xavorian does not guarantee that payment transactions will complete successfully. Transactions may fail for numerous reasons including verification failures, document issues, or participant disputes.

8.3 Dispute Resolution

Disputes arising from payment transactions are subject to our Terms of Service and applicable law. Xavorian does not resolve payment disputes between users and is not responsible for compensating parties for losses, except where required by law or caused by Xavorian’s own breach or negligence.

9. USER CONDUCT AND RESPONSIBILITY

You are solely responsible for your conduct on the Platform and your interactions with other users. A listing on our Platform does not constitute an endorsement or recommendation by Xavorian. Users agree not to:

- Commit fraud, scams, or misrepresentation
- Violate applicable laws
- Infringe intellectual property rights
- Harass, threaten, or abuse other users
- Access or tamper with Platform systems
- Post false or misleading information
- Conduct illegal transactions
- Engage in money laundering or sanctions evasion

10. MODIFICATIONS TO DISCLAIMER

Xavorian may modify this Disclaimer. Material changes take effect after at least fourteen (14) days' notice by email or prominent Platform notice, in line with the Terms of Service. Other changes take effect on posting.

Official Contact & Notices Directory

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Launch Focus (pre-launch): Lagos, Abuja, Benin City, Port Harcourt, and expanding across Nigeria.
For legal inquiries or statutory communications, contact the Xavorian Legal Office at legal@xavorian.com.